

UPSC GS-II POLITY

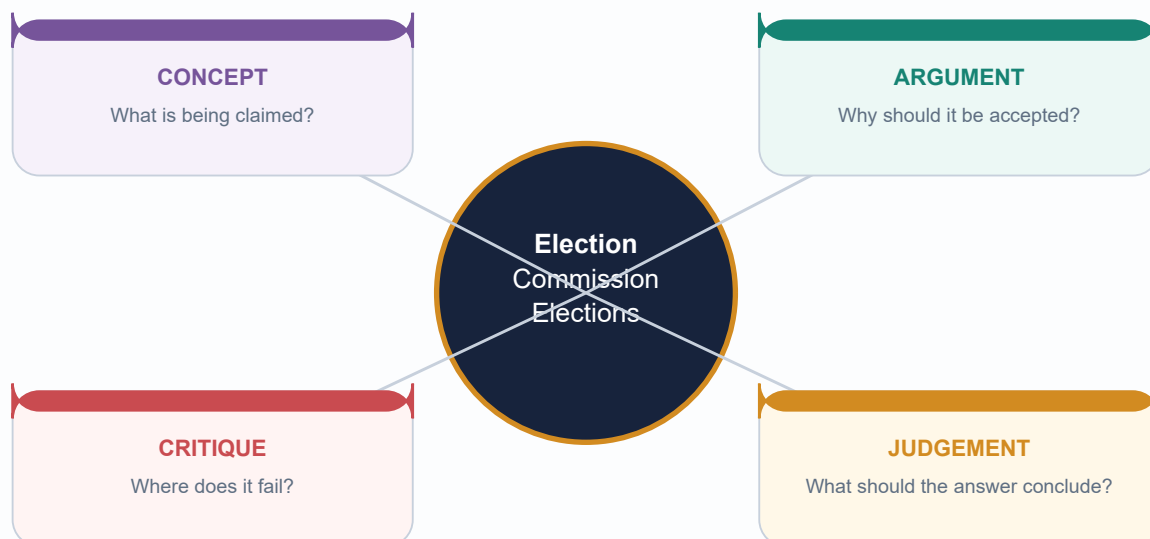
Election Commission and Elections (Articles 324-329)

Integrated Basic + Advanced Course

11 deep-learning modules | Articles 324 to 329 of the Constitution

Institutional architecture, appointment controversy, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (M. Laxmikant, Indian Polity, Ch. 42, 71-72)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Article 324 — Composition and Institutional Architecture of the ECI

GS-II Polity -
Election
Commission

NEWS TRIGGER

The composition and appointment process of the Election Commission of India are back in national debate following the 2023 Act and the pending Supreme Court challenge to it.

INTRO & ORIGIN

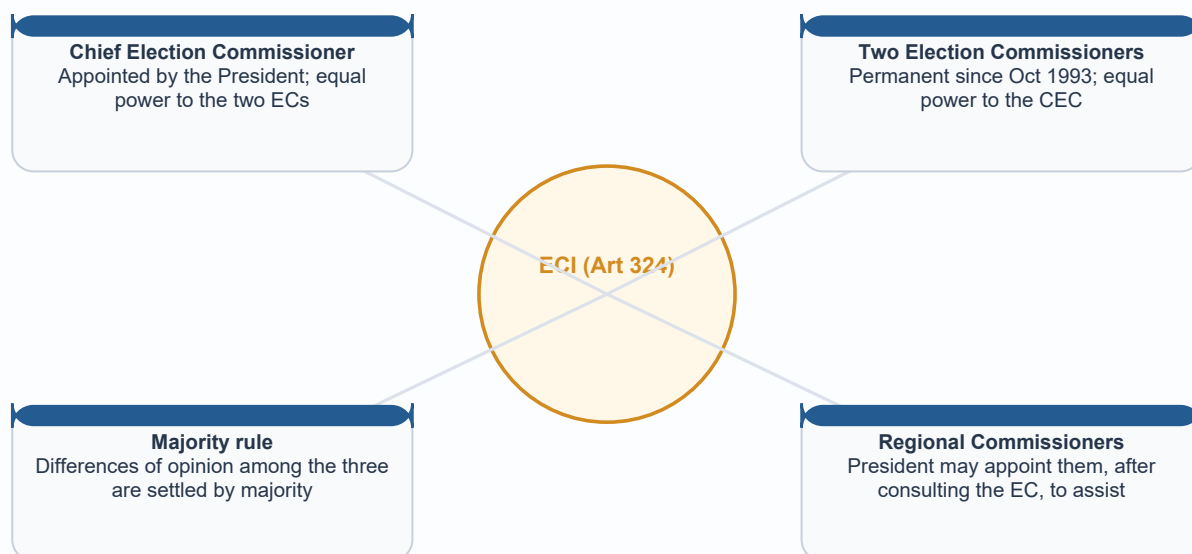
Article 324 creates a permanent, independent, all-India constitutional body — the Election Commission of India (ECI) — to conduct elections to Parliament, the State Legislatures, and the offices of President and Vice-President. It has no role in panchayat or municipal elections, which fall to the separate State Election Commission.

TIMELINE

Till 15 Oct 1989 — The Election Commission functions as a single-member body.

Oct 1993 — The Commission becomes a permanent 3-member body: the CEC plus two Election Commissioners.

THE ELECTION COMMISSION (ARTICLE 324)



KEY DATA

Feature	Detail
Members	CEC plus such other Election Commissioners as the President fixes
Appointment	By the President
Equal powers	The CEC and the two ECs have equal power and salary, equal to a Supreme Court judge; differences are decided by majority
Term	6 years or 65 years of age, whichever is earlier
Regional Commissioners	The President may appoint Regional Commissioners, after consulting the Election Commission, to assist it

STATIC THEORY

- The ECI is deliberately structured as an all-India body common to the Centre and every state, unlike bodies confined to one government.
- Equality of power among the CEC and the two ECs, with disputes settled by majority, prevents the CEC from being a superior authority over the other two.
- The Constitution leaves the actual number of Election Commissioners to the President's discretion; it only fixes that a CEC must exist.

MEMORY HOOK

3-MEMBER SINCE OCT 1993 | EQUAL POWER, MAJORITY RULE | 6 YEARS OR 65, WHICHEVER FIRST

MUST-KNOW FACTS

1. The Election Commission became a permanent three-member body (CEC plus two ECs) from October 1993.
2. The CEC and the two Election Commissioners have equal power and salary, equal to a Supreme Court judge.
3. The term of office is 6 years or 65 years of age, whichever is earlier.
4. The President may appoint Regional Commissioners after consulting the Election Commission.

UPSC TRAPS

WRONG: The Election Commission has always been a three-member body.

CORRECT: It was a single-member body until 15 October 1989 and became permanently three-member only from October 1993.

WRONG: The CEC has superior power over the two Election Commissioners.

CORRECT: All three have equal power; differences are resolved by majority.

MAINS ANGLE

Use the equal-power, majority-rule design of the ECI to argue that its institutional structure was meant to prevent concentration of authority in the CEC alone.

STUDY LINK

Polity -> Election Commission -> Independence and removal module

HIGH

2. Independence and Removal — The CEC vs Other ECs Asymmetry

GS-II Polity -
Institutional
Independence

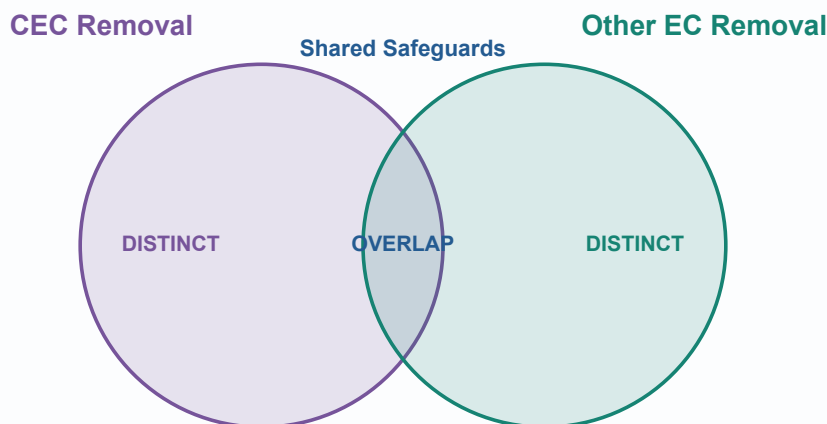
NEWS TRIGGER

The weaker removal protection enjoyed by the two Election Commissioners, compared with the CEC, is repeatedly flagged in the ongoing independence debate.

INTRO & ORIGIN

While the CEC and the two ECs hold equal power in office, the Constitution gives them unequal protection against removal — an asymmetry that matters directly for institutional independence.

CEC REMOVAL VS OTHER EC REMOVAL



CEC Removal

- Removed only like a Supreme Court judge
- Special-majority resolution of both Houses on proved misbehaviour or incapacity
- Service conditions cannot be varied to disadvantage after appointment

Shared Safeguards

- President appoints
- Equal power and salary while in office
- Term of 6 years or 65 years, whichever earlier

Other EC Removal

- Removed only on the CEC's recommendation
- No independent parliamentary-resolution safeguard of their own
- Weaker protection than the CEC despite equal power in office

Equal power in office, unequal protection against removal.

STATIC THEORY

- The CEC cannot be removed at the President's pleasure; only a special-majority resolution of both Houses, on the ground of proved misbehaviour or incapacity, can remove the CEC — the same standard as a Supreme Court judge.
- Other Election Commissioners and Regional Commissioners can be removed only on the recommendation of the CEC — a materially weaker safeguard than the CEC's own protection.
- Laxmikant flags three structural flaws: the Constitution prescribes no qualifications for membership, does not fix a term (left to law/rules), and does not debar retired Election Commissioners from further government appointment.

MEMORY HOOK

CEC = REMOVED LIKE AN SC JUDGE | OTHER ECs = REMOVED ONLY ON THE CEC'S RECOMMENDATION

MUST-KNOW FACTS

1. The CEC can be removed only through a special-majority resolution of both Houses of Parliament on proved misbehaviour or incapacity.
2. Other Election Commissioners and Regional Commissioners are removed only on the CEC's recommendation.
3. The Constitution prescribes no qualifications for Election Commissioners and does not fix a term of office in the constitutional text itself.

UPSC TRAPS

WRONG: Other Election Commissioners are removed by the same parliamentary-resolution process as the CEC.

CORRECT: They are removed only on the CEC's recommendation — a weaker safeguard.

WRONG: The Constitution fixes the Election Commissioners' term of office at 6 years.

CORRECT: The Constitution is silent on the term; it is set by law/rules, currently 6 years or 65 years, whichever earlier.

MAINS ANGLE

Examine whether the asymmetric removal protection between the CEC and the two ECs undermines the collegial, equal-power design of the Election Commission.

STUDY LINK

Polity -> Election Commission -> Appointment controversy module

HIGH

3. The Appointment Story — Anoop Baranwal to the CEC Act, 2023

GS-II Polity -
Appointment
Reform

NEWS TRIGGER

The constitutional challenge to Section 7 of the CEC & Other ECs Act, 2023 remains pending; the Supreme Court's 22 March 2024 order declined interim interference with appointments made under it (status checked 21 Jul 2026).

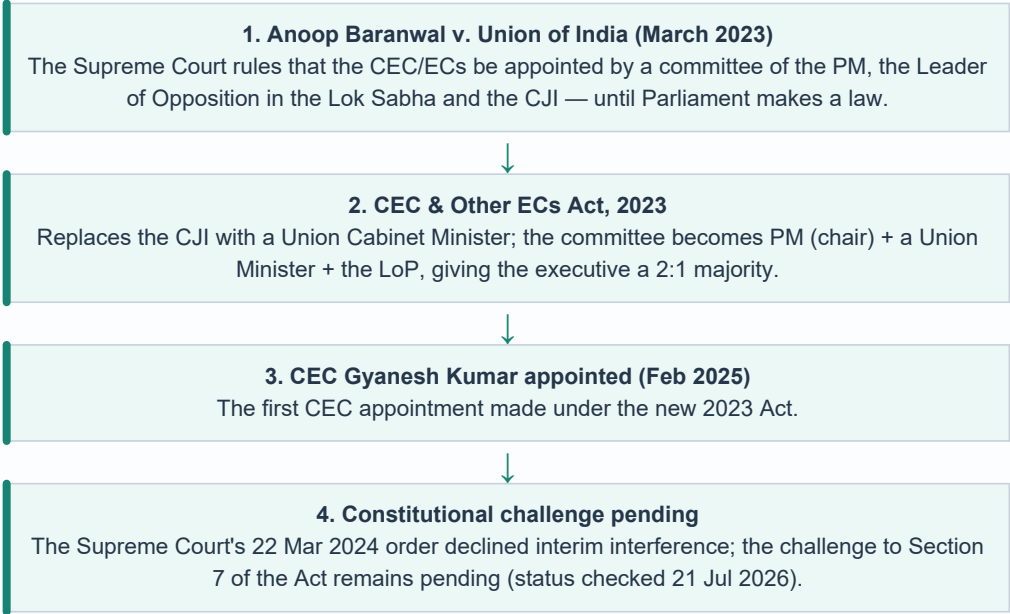
INTRO & ORIGIN

The process for appointing the CEC and other Election Commissioners has changed sharply since 2023, moving from a judicial intervention to a new statutory scheme with an executive majority on the selection committee.

KEY DATA

Stage	Selection Committee	Status
Anoop Baranwal (Mar 2023)	PM + Leader of Opposition (Lok Sabha) + CJI	Interim arrangement, valid only until Parliament legislated
CEC & Other ECs Act, 2023	PM (chair) + a Union Minister + Leader of Opposition	In force; gives the executive a 2:1 majority
Feb 2025	Committee under the 2023 Act	CEC Gyanesh Kumar appointed
22 Mar 2024 SC order / ongoing	Not applicable	Section 7 challenge pending; no interim stay granted

FROM ANOOP BARANWAL TO THE 2023 ACT



STATIC THEORY

- Anoop Baranwal was explicitly a stop-gap ruling: the SC-devised committee was to operate only until Parliament enacted a law on the subject.
- The 2023 Act is that law, but critics argue it dilutes the independence gained by including the CJI, since the executive now holds a 2:1 majority on the selection committee.
- The pending litigation concerns the Act's compatibility with institutional-independence and free-and-fair-election principles — not Parliament's competence to legislate after Anoop Baranwal, which is not in dispute.

MEMORY HOOK

BARANWAL (2023) = PM+LoP+CJI, INTERIM | 2023 ACT = PM+MINISTER+LoP, PERMANENT, EXECUTIVE 2:1

MUST-KNOW FACTS

1. Anoop Baranwal v. Union of India (March 2023) devised a PM + LoP + CJI selection committee, valid until Parliament legislated.
2. The CEC & Other ECs (Appointment, Conditions of Service and Term of Office) Act, 2023 replaced the CJI with a Union Cabinet Minister.
3. CEC Gyanesh Kumar was appointed in February 2025 under the new Act.
4. The Supreme Court's 22 March 2024 order declined interim interference with appointments under the Act; the Section 7 challenge remains pending.

UPSC TRAPS

WRONG: Anoop Baranwal permanently placed the CJI on the selection committee.

CORRECT: It placed the CJI on the committee only until Parliament made a law; the 2023 Act then replaced the CJI with a Union Minister.

WRONG: The Supreme Court has struck down the CEC & Other ECs Act, 2023.

CORRECT: As of the verified status check, the Court has declined interim interference; the challenge to Section 7 remains pending, not decided.

MAINS ANGLE

"The independence of the Election Commission depends more on the appointment process than on removal safeguards." Examine this claim in light of the 2023 Act.

STUDY LINK

Polity -> Judiciary -> Supreme Court's role in institutional appointments

HIGH

4. Powers and Functions — Administrative, Advisory, Quasi-Judicial

GS-II Polity -
Functions

NEWS TRIGGER

Model Code of Conduct enforcement, party-symbol disputes and MLA/MP disqualification references all draw on the same three-fold power structure of the Election Commission.

INTRO & ORIGIN

The Election Commission's powers fall into three categories, supported by a layered assisting machinery running from the Centre down to the district.

THE THREE CATEGORIES OF ECI POWER

ECI Powers (Art 324)

Administrative Assists the statutory Delimitation Commission; prepares electoral rolls; notifies the election schedule; allots symbols; enforces the Model Code of Conduct; can cancel rigged polls	Advisory Advises the President or Governor on questions of disqualification of sitting MPs and MLAs
Quasi-judicial Settles disputes over recognition of political parties and allotment of election symbols	Assisting machinery Deputy Election Commissioners at the Centre; Chief Electoral Officer at the state level; the DEO/Collector as District Returning Officer

STATIC THEORY

- The administrative function is the broadest, covering everything from electoral-roll preparation to Model Code enforcement and cancellation of vitiated polls.
- The advisory function is narrower and specific: disqualification questions for sitting members are referred to the President or Governor, who acts on the Commission's advice.
- The quasi-judicial function resolves party-recognition and symbol disputes — a role that directly affects which party can use a reserved symbol.
- A layered administrative machinery — Deputy ECs, state Chief Electoral Officers, and district Returning Officers — carries out these functions on the ground.

MEMORY HOOK

EC POWERS = A-A-Q — ADMINISTRATIVE, ADVISORY, QUASI-JUDICIAL

MUST-KNOW FACTS

1. The ECI assists the statutory Delimitation Commission and prepares electoral rolls.
2. The ECI advises the President/Governor on disqualification of sitting MPs/MLAs.
3. The ECI quasi-judicially settles party-recognition and symbol disputes.
4. The Chief Electoral Officer functions at the state level, and the District Election Officer/Collector at the district level.

UPSC TRAPS

WRONG: The Election Commission itself decides MP/MLA disqualification questions.

CORRECT: It only advises the President or Governor, who takes the decision on that advice.

MAINS ANGLE

Illustrate how the administrative, advisory and quasi-judicial powers of the ECI work together during an actual election cycle.

STUDY LINK

Polity -> Elections -> Articles 325-329 module

HIGH

5. Elections — Articles 325 to 329

GS-II Polity -
Electoral
Provisions

NEWS TRIGGER

Judicial-interference disputes around delimitation and election petitions test how far Article 329's bar on court interference actually extends.

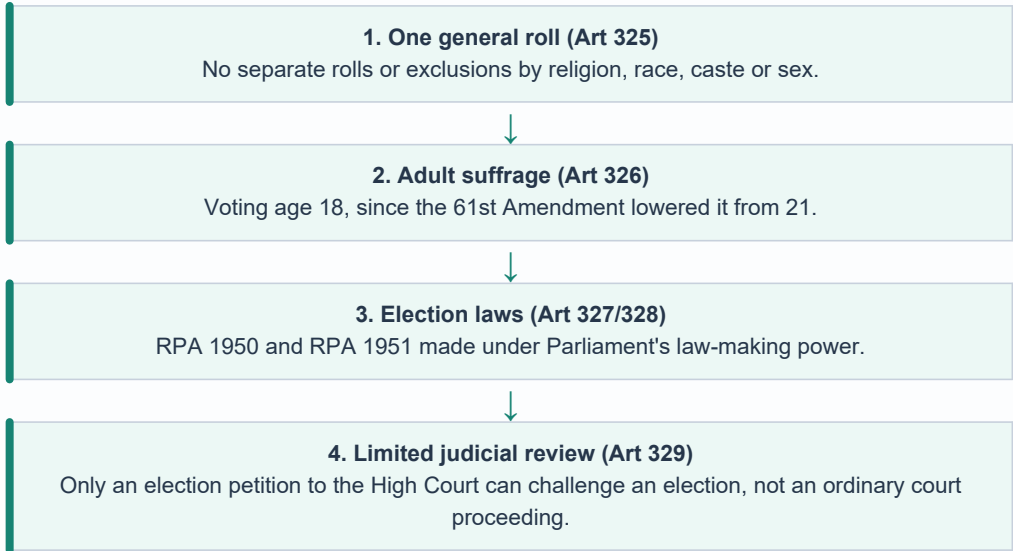
INTRO & ORIGIN

Four articles frame the constitutional law of elections themselves, separate from the Commission's own composition under Article 324.

KEY DATA

Article	Provision
Article 325	One general electoral roll for every territorial constituency; no exclusion or claim on grounds of religion, race, caste or sex
Article 326	Elections to the Lok Sabha and State Assemblies on the basis of adult suffrage; voting age is 18, lowered from 21 by the 61st Amendment (1988/89)
Articles 327 / 328	Parliament (and, correspondingly, the state legislature) has power to make laws on elections — exercised through the Representation of the People Acts, 1950 and 1951
Article 329	Bars court interference in electoral matters; delimitation and elections can be challenged only through an election petition to the High Court

THE ELECTORAL FRAMEWORK IN SEQUENCE



STATIC THEORY

- Article 325's single general roll is a foundational equality guarantee — no separate rolls by religion, race, caste or sex are permitted.
- The 61st Amendment (1988/89) lowering the voting age from 21 to 18 was a deliberate widening of the franchise, not part of the original 1950 constitutional design.
- Article 329's bar on court interference channels all electoral challenges through the specific route of an election petition, rather than ordinary litigation.

MEMORY HOOK

325 = ONE ROLL | 326 = ADULT SUFFRAGE (18) | 327/328 = RPA LAWS | 329 = ELECTION PETITION ONLY

MUST-KNOW FACTS

1. Article 325 mandates one general electoral roll with no exclusion by religion, race, caste or sex.
2. The voting age was lowered from 21 to 18 by the 61st Amendment (1988/89).
3. Elections are governed by the Representation of the People Acts, 1950 and 1951.
4. Article 329 permits election challenges only through an election petition to the High Court.

UPSC TRAPS

WRONG: The voting age has been 18 since the Constitution was adopted in 1950.

CORRECT: It was 21 originally and was lowered to 18 only by the 61st Amendment (1988/89).

WRONG: Elections can be challenged in any ordinary court.

CORRECT: Article 329 permits challenges only through an election petition to the High Court.

MAINS ANGLE

Discuss how Articles 325, 326 and 329 together balance universal, equal franchise with a controlled, specific mechanism for challenging elections.

STUDY LINK

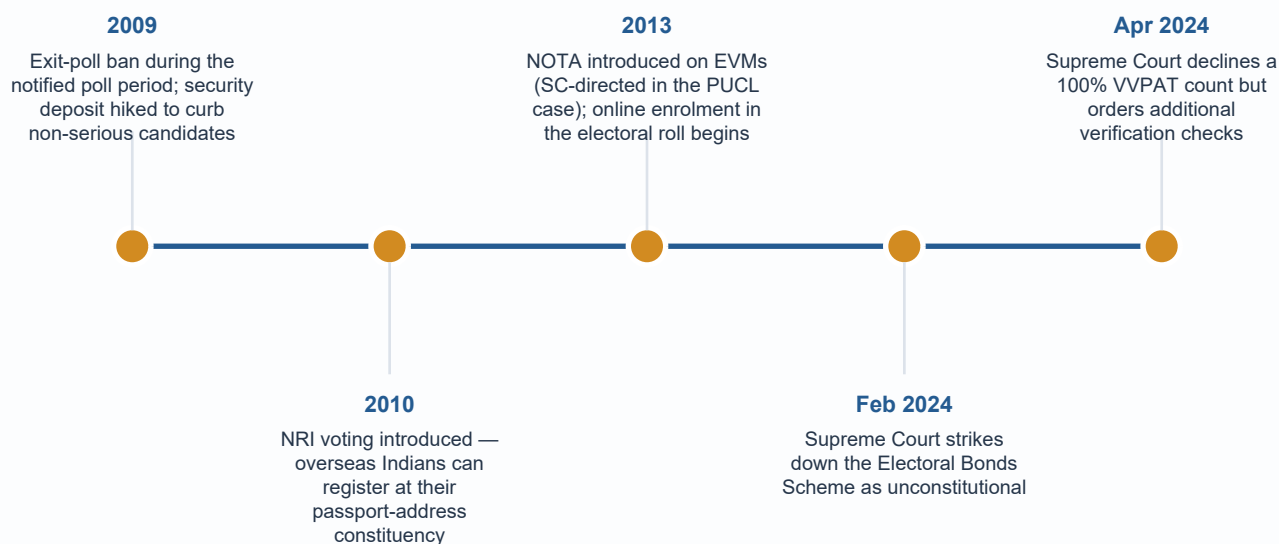
Polity -> Fundamental Rights -> Right to equality and universal suffrage

HIGH**6. Electoral Reforms Timeline**GS-II Polity -
Reforms**NEWS TRIGGER**

The Supreme Court's February 2024 decision striking down electoral bonds is the most consequential electoral-reform event of recent years, alongside the ongoing VVPAT verification debate.

INTRO & ORIGIN

A sequence of statutory and judicial reforms has reshaped the mechanics of voting since the original Representation of the People Acts.

ELECTORAL REFORMS IN SEQUENCE

KEY DATA

Reform	Detail
NOTA (2013)	"None of the Above" option on the EVM, directed by the SC in the PUCL case; the highest-vote candidate still wins regardless of the NOTA count
VVPAT	Voter Verifiable Paper Audit Trail — an independent paper-based verification of the EVM vote
Exit-poll ban (2009)	Prohibited during the notified poll period
NRI voting (2010)	Overseas Indians can register at their passport-address constituency
Online enrolment (2013)	E-registration in the electoral roll
Security deposit hike (2009)	Raised to curb non-serious candidates

STATIC THEORY

- NOTA does not void an election even if it receives the largest share of votes; the highest-polling candidate among the actual contestants is still declared elected.
- VVPAT provides voter-facing verifiability but is administratively distinct from NOTA, which is a voting option, not an audit mechanism.
- The Electoral Bonds Scheme was struck down in February 2024 as unconstitutional for violating the right to information regarding political-funding sources.
- On VVPAT, the Supreme Court's April 2024 order stopped short of ordering 100% verification, while still directing additional checks.

MEMORY HOOK

NOTA = OPTION, NOT A VETO | ELECTORAL BONDS STRUCK DOWN FEB 2024 | VVPAT CHECKS ORDERED, NOT 100% COUNT

MUST-KNOW FACTS

1. NOTA was introduced on EVMs in 2013 following the Supreme Court's PUCL judgment.
2. The Electoral Bonds Scheme was declared unconstitutional by the Supreme Court in February 2024.
3. In April 2024, the Supreme Court declined a full VVPAT count but ordered additional verification checks.
4. NRI voting was introduced in 2010; online enrolment began in 2013.

UPSC TRAPS

WRONG: If NOTA gets the most votes, the election is countermanded.

CORRECT: The candidate with the highest valid votes among contestants still wins; NOTA has no override effect.

WRONG: The Supreme Court ordered 100% VVPAT-EVM verification in 2024.

CORRECT: It declined a full count and instead ordered additional, limited verification checks.

MAINS ANGLE

Trace the electoral-reform trajectory from EVMs and NOTA to electoral bonds and the 'One Nation, One Election' debate, and assess its cumulative direction.

STUDY LINK

Polity -> Political Parties -> Political funding and transparency

HIGH

7. Model Code of Conduct — Non-Statutory but Consequential

GS-II Polity -
MCC

NEWS TRIGGER

Hate-speech and bribery complaints during election campaigns repeatedly test where the Model Code of Conduct's non-statutory character ends and statutory liability under the RPA/BNS begins.

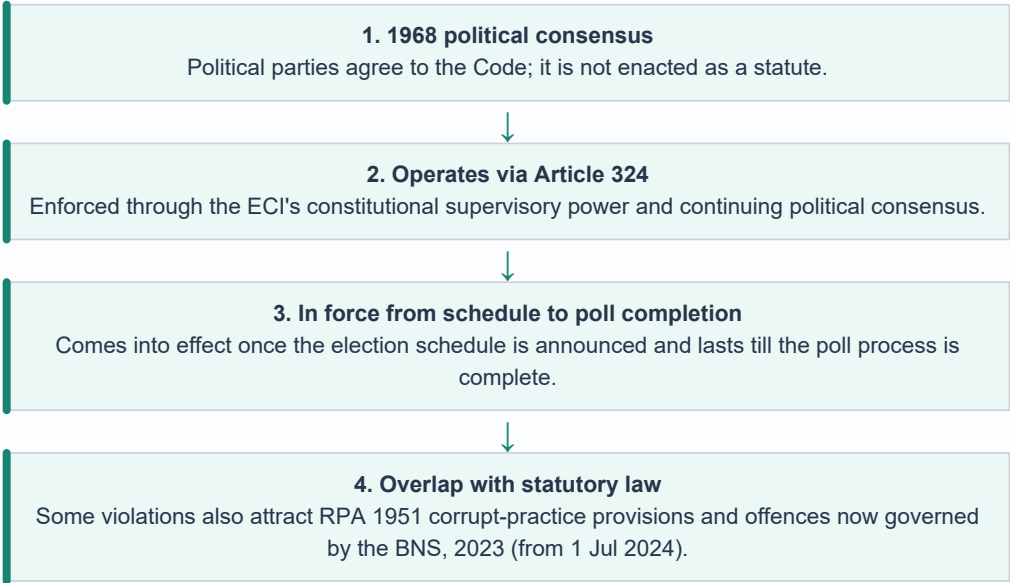
INTRO & ORIGIN

The Model Code of Conduct (MCC) was agreed to by political parties in 1968 and operates through the ECI's Article 324 supervisory powers and continuing political consensus, rather than through a standalone statute.

KEY DATA

MCC Area	Legal Character
Hate speech, bribery, communal appeals	May attract the RPA/BNS and other statutory provisions
Official machinery, advertisements, transfers, new schemes	Mostly enforced administratively by the ECI
General conduct of parties and candidates	Non-statutory code, backed by Article 324 supervision

HOW THE MODEL CODE OF CONDUCT OPERATES



STATIC THEORY

- The MCC is best understood as a political-consensus instrument enforced through the ECI's constitutional powers, not as delegated legislation or a standalone Act.
- It comes into force upon announcement of the election schedule and remains in force until the poll process concludes.
- Where the same conduct is also a statutory offence (for example, under the RPA 1951 or the BNS, 2023 from 1 July 2024), the ECI can censure, advise, order transfers, or direct prosecution.

MEMORY HOOK

MCC = NON-STATUTORY, BUT THE SAME CONDUCT CAN STILL BE PUNISHABLE UNDER RPA/BNS

MUST-KNOW FACTS

1. The Model Code of Conduct was agreed to by political parties in 1968.
2. The MCC is non-statutory; it operates through the ECI's Article 324 powers and political consensus.
3. It comes into force from the announcement of the election schedule and lasts till the poll process is completed.
4. Certain MCC violations may also constitute offences under the RPA 1951 or the Bharatiya Nyaya Sanhita, 2023 (in force from 1 July 2024).

UPSC TRAPS

WRONG: The Model Code of Conduct is a statute passed by Parliament.

CORRECT: It is a non-statutory code agreed to by political parties, enforced via the ECI's Article 324 powers.

WRONG: Because the MCC is non-statutory, none of its violations can attract legal punishment.

CORRECT: Certain violations overlap with enforceable statutory offences under the RPA/BNS, even though the MCC itself is not a statute.

MAINS ANGLE

Discuss the role of the Election Commission in the light of the evolution of the Model Code of Conduct, including its non-statutory character and its practical enforcement.

STUDY LINK

Polity -> Political Parties -> Model Code of Conduct enforcement

HIGH**8. ECI vs State Election Commission — Jurisdiction Boundaries**

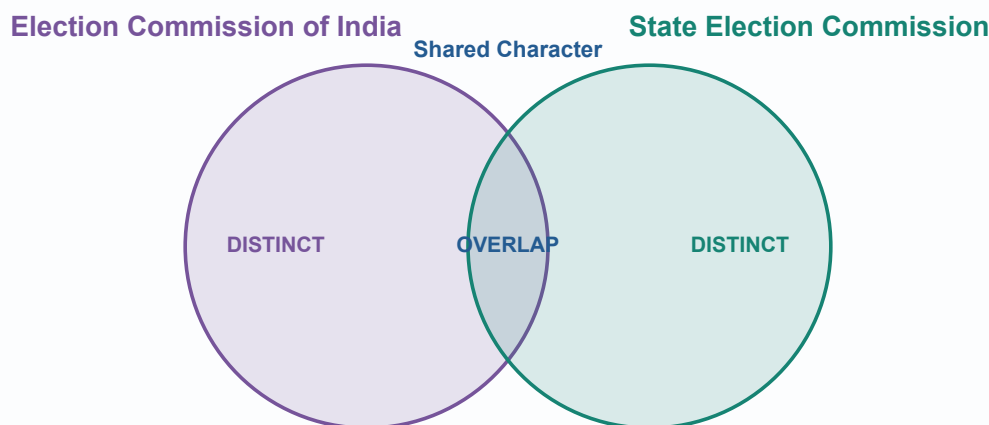
GS-II Polity - Jurisdiction

NEWS TRIGGER

Confusion between the ECI and the State Election Commission recurs whenever panchayat or municipal poll disputes are wrongly directed to the national Commission.

INTRO & ORIGIN

The Election Commission of India and the State Election Commission are distinct constitutional authorities with separate jurisdictions; the ECI's Article 324 mandate does not extend to local body elections.

ECI VS STATE ELECTION COMMISSION**Election Commission of India**

- Conducts elections to Parliament and State Legislatures
- Conducts elections to the offices of President and Vice-President
- An all-India body common to Centre and states

Shared Character

- Independent constitutional election-management authority
- Prepares electoral rolls for elections within its own domain

State Election Commission

- Conducts elections to panchayats and municipalities
- A separate constitutional authority for local-body polls
- Distinct from, and not supervised by, the ECI

The ECI is not concerned with panchayat or municipal elections — that is the State Election Commission's domain.

STATIC THEORY

- A single, common error is to assume the ECI conducts every election in the country; local body elections are constitutionally assigned to a separate State Election Commission.
- Both bodies share the character of being independent election-management authorities, but their jurisdictions do not overlap.

MEMORY HOOK

ECI = PARLIAMENT, ASSEMBLIES, PRESIDENT/VP | STATE EC = PANCHAYATS AND MUNICIPALITIES

MUST-KNOW FACTS

1. The Election Commission of India is not concerned with panchayat or municipal elections.
2. Those elections are conducted by the separate State Election Commission.

UPSC TRAPS

WRONG: The Election Commission of India conducts panchayat and municipality elections.

CORRECT: Those elections are conducted by the State Election Commission, a separate constitutional authority.

MAINS ANGLE

Clarify the distinct constitutional domains of the ECI and the State Election Commission whenever a question mixes national and local-body election machinery.

STUDY LINK

Polity -> Panchayati Raj / Municipalities -> State Election Commission

HIGH**9. Verified Current-Affairs Anchors**

GS-II Polity -
Current Affairs
Link

NEWS TRIGGER

Electoral bonds, VVPAT verification, One Nation One Election, and the Remote Voting Machine proposal are the four live current-affairs threads most closely tied to this topic.

INTRO & ORIGIN

These current-affairs anchors are drawn from the verified Polity knowledge base and should be revised alongside the static institutional design, not as a separate silo.

STATIC THEORY

- Current-affairs items on this topic are almost always applications of one design question: how independent and verifiable is India's electoral machinery in practice.

MEMORY HOOK

EVERY ECI NEWS ITEM MAPS BACK TO: INDEPENDENCE, TRANSPARENCY, OR VERIFIABILITY

MUST-KNOW FACTS

- 1. The Remote Voting Machine remains an ECI proposal/prototype for consultation, not an enacted voting entitlement.
- 2. Electoral-roll revision controversies must be tied to the specific ECI order and pending judicial proceeding; they are not a fixed, permanent nationwide rule.

UPSC TRAPS

WRONG: The Remote Voting Machine has already been rolled out nationally.

CORRECT: It remains a proposal/prototype under consultation, not an enacted entitlement.

STATIC CONCEPT TO CURRENT-AFFAIRS LINK

Current-Affairs Item	Static Concept It Tests	Why It Matters
Electoral Bonds struck down (Feb 2024)	ECI's administrative role in political-funding transparency	Tests the link between electoral funding secrecy and the right to information
VVPAT 100% verification demand (SC, Apr 2024)	Voter-verifiability reforms	Tests whether voter-facing verification and administrative feasibility can be balanced
One Nation, One Election (Kovind Committee)	Articles 324-329 electoral machinery	Tests federalism, accountability and mid-term-collapse concerns against claimed efficiency gains
Remote Voting Machine (RVM) proposal	ECI's administrative and advisory powers	Tests awareness that RVM remains a prototype under consultation, not an enacted voting entitlement
CEC & Other ECs Act, 2023 and pending challenge	Independence of the appointment process under Article 324	Tests understanding of the ongoing appointment-independence controversy

MAINS ANGLE

Use the electoral bonds and VVPAT verification episodes as live case studies of the tension between administrative feasibility and the demand for greater electoral transparency.

STUDY LINK

Current Affairs -> Polity -> Election Commission and Elections

HIGH

10. UPSC Traps — Election Commission Myths

GS-II Polity - Answer Precision

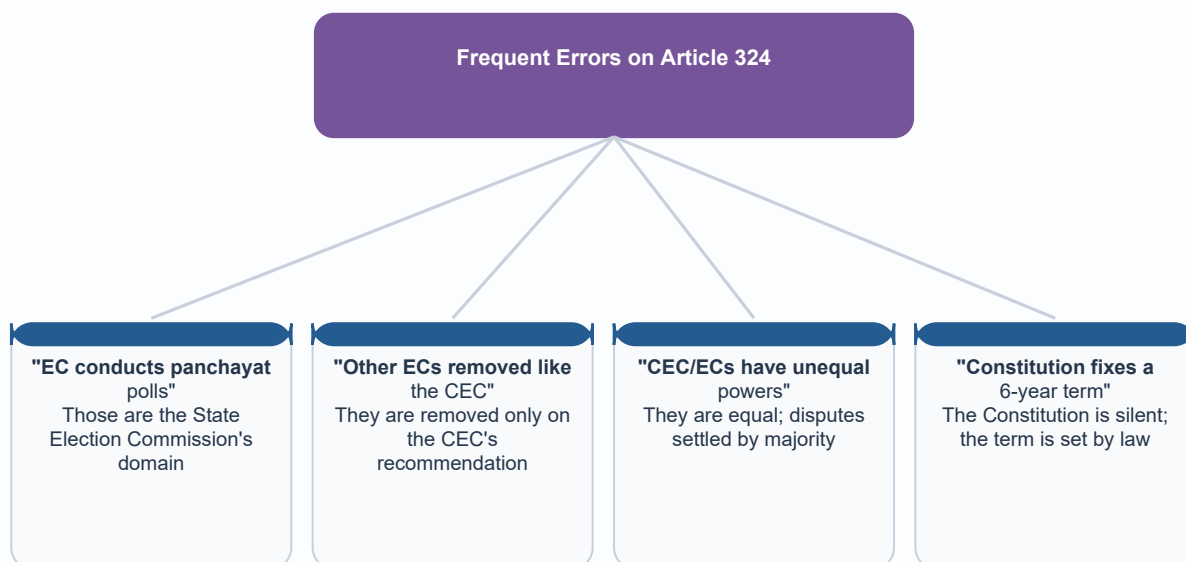
NEWS TRIGGER

Prelims and Mains both penalise the same handful of recurring confusions about the Election Commission's composition, removal and jurisdiction.

INTRO & ORIGIN

Four errors account for most of the marks lost on this topic; each has a precise constitutional correction.

COMMON ELECTION COMMISSION ERRORS



KEY DATA

Wrong statement	Correct position
Anoop Baranwal permanently placed the CJI on the selection committee.	It applied only until Parliament made a law; the 2023 Act then replaced the CJI with a Union Minister.
The voting age has been 18 since 1950.	It was lowered from 21 to 18 only by the 61st Amendment (1988).

STATIC THEORY

- Most traps on this topic exchange the CEC's stronger removal safeguard for the weaker one that applies to the other Election Commissioners, or misstate the ECI's jurisdiction over local body polls.
- A safe rule: whenever a claim implies the ECI or its members have unlimited or uniform power, check it against the specific constitutional text — the design is deliberately asymmetric and bounded.

MEMORY HOOK

CHECK EVERY CLAIM AGAINST: WHO REMOVES WHOM, AND WHICH BODY HAS JURISDICTION

MUST-KNOW FACTS

1. The State Election Commission, not the ECI, conducts panchayat and municipal elections.
2. Other Election Commissioners are removed only on the CEC's recommendation.
3. The CEC and the two ECs have equal power; disputes are resolved by majority.

UPSC TRAPS

WRONG: The CEC and other ECs have unequal powers, with the CEC superior.

CORRECT: They have equal power and salary; differences are decided by majority.

WRONG: The Constitution fixes the Election Commissioners' term at 6 years.

CORRECT: The Constitution is silent; the term is set by law/rules.

MAINS ANGLE

Should the removal protection of the two Election Commissioners be brought on par with that of the CEC? Discuss with reference to institutional independence.

STUDY LINK

Polity -> Election Commission -> Traps consolidation

HIGH

11. Mains Framework — Independence, Reform and Verified PYQs

GS-II Mains
Polity - Answer
Writing

NEWS TRIGGER

This theme has already been tested directly in consecutive years — UPSC Mains 2024 on electoral reforms and 'One Nation, One Election', and UPSC Mains 2025 on corrupt practices under the Representation of the People Act, 1951.

INTRO & ORIGIN

A high-scoring answer on the Election Commission links the constitutional design (Art 324-329) to the specific reform or controversy the question raises, rather than reciting provisions in isolation.

KEY DATA

Verified PYQ	Year	Core Route
"Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation - one election' principle."	2024 GS-II Q1 (10 marks, 150 words)	Committee proposals -> claimed stability/cost gains -> federal, accountability and mid-term-collapse problems -> constructive safeguards.
"Discuss the 'corrupt practices' for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute 'undue influence' and consequently a corrupt practice."	2025 GS-II Q1 (10 marks, 150 words)	Section 123 categories -> strict proof/election nexus -> distinguish unexplained enrichment from voter coercion/undue influence -> disclosure, investigation and disqualification reform.

STATIC THEORY

- Both verified PYQs test the same underlying skill: linking a specific statutory or reform proposal to its constitutional and practical implications, rather than a general description of the ECI.
- For 'One Nation, One Election', the strongest answers weigh claimed efficiency and cost gains against federalism and mid-term-dissolution risks.
- For corrupt practices under the RPA 1951, the key analytical move is distinguishing unexplained personal enrichment from actual voter coercion or undue influence, which requires a stricter evidentiary link to the election.

MEMORY HOOK

LINK EVERY ANSWER TO A NAMED PROVISION, THEN TO ITS FEDERAL/ACCOUNTABILITY CONSEQUENCE

MUST-KNOW FACTS

1. UPSC Mains 2024 GS-II Q1 tested electoral reforms with reference to 'One Nation, One Election'.
2. UPSC Mains 2025 GS-II Q1 tested 'corrupt practices' under the Representation of the People Act, 1951.

UPSC TRAPS

WRONG: Any large or disproportionate asset increase automatically counts as a corrupt practice under the RPA 1951.

CORRECT: It must be shown to amount to undue influence or another specified corrupt practice, not mere unexplained personal enrichment.

MAINS ANGLE

"The independence of the Election Commission depends more on the appointment process than on removal safeguards." Examine in light of the 2023 Act, and connect it to the 'One Nation, One Election' and electoral-reform debates.

STUDY LINK

Polity -> Political Parties -> Electoral reforms and answer-writing practice

End of Register Notes — UPSC Agent / Copilot CLI